

V.
Overseers shall and
all Cloths marked
by them.

And to the end that the said Clothes Kervies Douens Cottons Panystons Kighley Whites and Frynes, or any other Clothes by what Name or Names severer they be called, use to be viewed and serched may be the better knowne; It is therefore enacted that the said Overseers shall fixe unto every kinde of the Clothes aforesaid, a Seale of Lead, containinge the Lengthe and the Weight of every suche Clothe, together with this Word, serched; which Cloth once sealed by the said Overseers, shall not be serched tried or viewed by any other Searcher or Overseer of any other Citye Borough Towne Village Parishes or Hamlet by vertue of his or their said Office or Office; any Thinge in this Acte or in any other Statute to the contrary notwithstandinge.

VI.
Penalty on
overseers
for default.

And further the said Clothiers and other Inhabitant doe humblye praye that yt maye be likewise enacted, That yf any gowne or gowne, but suche as are appointed assigned and quitted by this Acte or their Vnters or Deputies, doe at any tyme after the said twelvthe daye of September counterfeite or sett in, or willinglye and wittinglye take awaye from, say the said Clothes Kervies Douens Cottons Panystons Kighley Whites and Frynes, or any other Clothe by what Name or Names severer they be called, made within the Countie aforesaid, any of the Seales so to be fixed as above is recited, that then every gowne soe offendinge shall for the first Offence forfeite and lose Tenne Pounde, and for the second Offence, beinge thereof lawfullye convicted by the Verdict of Twelve Men and Two sufficient Witnesses, stand upon the Pillory, and lose and forfeite to your moste excellent Majestie, your Heires and Successors, Twentye Pounde.

VII.
Justices of Peace
maye searche
for default
of the
Searche, Ringe, &c.

And to the end that the said Statute and Lawes aforesaid maye be the more effectuallye executed, and all stretchinge and falselinge of any the Clothes aforesaid taken awaye, it maye be alsoe enacted that every Justice of the Peace Head Constable or other the Overseers aforesaid, shall have full Power and lawfull authoritie to enter in or upon any the Messuages Tenements Houses Buildinge Lande or Grounde of any gowne or gowne whatsoever, to serche for any suche Tenter, of what sorte or hynde severer, or any manner of Ropes Ringe Head Wrings or other Engins whatsoever, whereby any Falsehood or Deceite maye be used in or aboute the stretchinge [or] strayinge of any the sayd Clothes Kervies Douens Cottons Panystons Kighley Whites, or any other Clothe by what name or names severer they be called, or any of them; And that yf they should fynde anye suche Tenters of what sorte or hynde severer, or any manner of Ropes Ringe Head Wrings or Engins, they shall and maye utterlye deface the same, in suche sorte as they cannot be employede agayne to anye suche use; and yf any gowne or gowne with whom anye suche shall once have bene found, shall after that be knowne to have or use anye suche Tenter of what sorte or hynde severer, or any manner of Ropes Ringe Head Wrings or Engins, that then they the said Justices Head Constables or Overseers, or any of them within their severall Jurisdictions, shall take and sell the same to the best valewe thereof, and by the Consent of Two Justices of Peace within the same Countie dispose the Money thereof comynge to the Poore of the Parishes where the same shalbe soe taken; and that upon Complaynte made or Informaſion given of anye suche Tenter, of what sorte or hynde severer, or any manner of Ropes Head Ringe Wrings or Wrings, or any other Engins, to any Justice of Peace, every one of them to whom suche Complaynt shalbe made or Informaſion given, shall within seven dayes nexte ensuynge suche Complaynt or Informaſion given, repaire to the Place where the same shalbe so had and used, and then and there execute this Lawe as aforesaid, upon the payne hereafter in this Pointe Acte expressed; And that yf any gowne or gowne shall withstande or resist anye suche Justice of Peace or Head Officers in or aboute touchinge or concerninge the execution of the premises, everye suche gowne or gowne, shall forfeite and suffer as ys before limited, for resistinge the Overseers in the Searche; And yf anye the Justices or Justice of Peace within the Limites or Boundes of his or thers Commission shalbe negligent or make defaulte in doynge of anye Thinge touchinge or concerninge the due or true execution of this Statute or anye Thinge therein comynge, everye suche Justice of Peace for everye suche defaulte shall forfeite and lose fyve Pounde.

VIII.
Application
of Forfeitures.

And that all such Forfeitures as shall happen or growe by reason of this Acte, shalbe one third pte thereof to suche gowne or gowne as shall be then Overseers, one other thirde pte to the use of our Soveraigne Ladye the Queenes Majestie, and one other third parte to the use of the Poore, to be employede to the use of the Poore in suche sorte as the Justices of Peace, in their Quarter Sessions to be holden nexte after Judgement had or given for the same, shall limit and appoynt.

IX.
Justices of Peace
maye determine
Offences by
Complaint.

And that the said Justices of Peace in their Quarter Sessions shall and maye inquire heare and determine everye False or Offence made or done contrarye to this Pointe Acte, or anye Thinge therein comynge, except the Offences comynge and Forfeitures made by the Justices of Peace by Paymente Bill or Informaſion, and upon Proofs thereof made by the Testimonye of two sufficient Witnesses openly given to the Jurye, and thereupon Presentment made by the Jurye, to give order for the execution of this Statute, and everye Clause therein comynge, and for the Recoverye of the Penalties aforesaid to the uses aforesaid.

X.
Justices of Peace
maye determine
Offences by
Complaint.

And that the Justices of Peace shall and maye inquire heare and determine of anye False or Offence made or done by any Justice of Peace contrarye to this Pointe Acte, in neglecte of thers dutye in or aboute touchinge or concerninge the Execution of this presente Acte, and upon Proofs thereof made by two sufficient Witnessess, and by the Presentment of the Jurye, shall and maye give order for Recoverye and Employmente of the Penalties and Forfeitures by them admitted and made to the uses aforesaid; and for defaulte of Justices to bee done in manner and forme aforesaid by the Justices of Peace or Justices of Peace, then the one Mayestie of all suche Forfeitures to the one halfe thereof to her Majestie, and the other to hym that will sue for the same by Action of Debt Bill Playnt Informaſion in any of her Majesties Courts or Court of Record at Westminster, in which a Wager of Lawe Procession or Excoſion shalbe admitted or allowed.